

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

INTERNATIONAL LONGSHOREMEN'S ASSOCIATION,
Complainant

v.

GATEWAY TERMINALS, LLC; CHARLESTON STEVEDORING
CO., LLC; PORTS AMERICA FLORIDA, INC.; CERES MARINE
TERMINALS, INC.; AND SSA ATLANTIC, LLC, *Respondents*.

DOCKET NO. 22-12

Served: March 17, 2023

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER ON MOTION TO AMEND SCHEDULE

On March 14, 2023, Complainant filed a request for a 21-day extension of time of the jurisdiction discovery and briefing schedule previously set by Order on Motion to Bifurcate, Scheduling Order, and Protective Order ("Scheduling Order") served on March 9, 2023. Complainant asserts that Respondents consent to the motion and the proposed amended schedule. An email to the parties confirmed that Respondent does not plan to respond to the motion. Complainant seeks what it refers to as an extension of the discovery and briefing dates set in the Scheduling Order, so it will be treated as motion to amend the scheduling order ("Motion to Amend Schedule").

The motion indicates that Complainant's counsel has conflicts with the current schedule, including briefs due in an appellate court case on April 28, 2023, and May 26, 2023. The current briefing schedule requires Complainant to file its initial brief on April 19, 2023, Respondents to file their opposition brief on May 10, 2023, and Complainant to file its reply brief by May 24, 2023. Based on the appellate court briefing schedule, the current briefing schedule is untenable, and Complainant has established good cause to amend the briefing schedule.

This is the fourth extension requested while this proceeding is in its early stages. Although it will be granted in part, no further extension requests will be permitted for the jurisdictional phase of this proceeding. As noted in the November 28, 2022, order granting the last request for an extension of time, delays should be minimized whenever possible. In this regard, Complainant asserts in the Motion to Amend Schedule that it has not yet received any records from Respondents in response to its jurisdictional discovery requests. Respondents are reminded that they asserted nearly two months ago in support of the motion to bifurcate that they were "preparing that initial round of production now." Motion to Bifurcate at 7. In the order granting Respondents' motion to bifurcate and setting the discovery and briefing schedule,

Respondents' assertion regarding preparation of the underlying records submitted to the FMC General Counsel in 2019 was noted, and the order stated: "[t]o the extent that they have not yet done so, [Respondents] should produce [the records] no later than the date indicated below." Scheduling Order at 5-6. In light of their assertion in January 2023, Respondents' failure to produce any records in response to discovery requests as of the date of Complainant's motion is concerning.

No argument supporting the extension of the discovery deadline has been made or is supported by the facts alleged in the motion. The March 29, 2023, date to complete discovery on the jurisdictional issues, accordingly, will remain in place since extending that further will only result in further delays.

Good cause having been shown to extend the briefing schedule, it is hereby ordered that Complainant's motion to amend the scheduling order, be **GRANTED IN PART**.

The parties are hereby **ORDERED** to follow this amended schedule:

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| March 29, 2023 | Respondents provide the records submitted to the Commission in 2019 and any updated versions of those records, including but not limited to all contracts, agreements, or leases between Respondents and Georgia Ports Authority and South Carolina Ports Authority regarding the operation of the terminals at the Ports of Savannah and Charleston from 2019 to present, including amendments. Parties respond to existing discovery requests regarding jurisdictional issues only, including records showing how the terminals operate at the two ports, and each party's function, including what role, if any the Respondents play in "providing wharfage, dock, warehouse, or other terminal facilities in connection with a common carrier...." No Depositions will be scheduled at this time. |
| May 10, 2023 | Complainant's brief relating to jurisdiction; any remaining discovery issues relating to jurisdiction should be identified in the brief (what was requested, why it is relevant, and what it might show). |
| May 31, 2023 | Respondent's opposition brief relating to jurisdiction; any remaining discovery issues relating to jurisdiction should be identified in the brief (what was requested, why it is relevant, and what it might show). |
| June 14, 2023 | Complainant's reply brief and responses to proposed findings of fact relating to jurisdiction. |

The parties are reminded that no discovery motions will be permitted on the jurisdictional portion of this proceeding and any objections to discovery issues should be addressed in the parties' briefs, as indicated above.

A handwritten signature in blue ink, reading "Linda S. Harris Crovella".

Linda S. Harris Crovella
Administrative Law Judge